

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

----- X  
RICHARD HAIRSTON,

Plaintiff,

Index No:

- against-

**VERIFIED COMPLAINT**

THE CITY OF NEW YORK, MICHAEL  
VAZQUEZ, PIERRE SENAT, FRANCESCO  
MONASTRA, TATIANA CRUZ, LOUIS  
GUGLIELMO, and JOHN/JANE DOES 1-10,

Defendants.  
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Plaintiff, RICHARD HAIRSTON by his attorneys, LIAKAS LAW, P.C., as and for this  
Verified Complaint, alleges as follows:

**PRELIMINARY STATEMENT**

1. This is a common law tort and civil rights action in which plaintiff seeks relief for violation of his rights privileges and immunities guaranteed by the United States Constitution including the Fourth and Fourteenth Amendments, and federal law pursuant to 42 U.S.C. §1983, as well as pursuant to New York State and New York City laws which permit redress for same.

2. Upon information and belief, on or about June 27, 2023, New York City Police Department [hereinafter as “NYPD”] uniformed officers MICHAEL VAZQUEZ, PIERRE SENAT, and FRANCESCO MONASTRA, acted in concert and/or otherwise jointly to unlawfully search and seize Plaintiff by assaulting, battering, and using excessive force against him or in otherwise failing to intervene in said unlawful and unconstitutional acts.

3. On or about June 27, 2023, NYPD officers MICHAEL VAZQUEZ, PIERRE SENAT, FRANCESCO MONASTRA, TATIANA CRUZ, LOUIS GUGLIELMO, and JOHN/JANE DOES 1-10, [hereinafter collectively referred to as the “Individual Defendants”],

acted in concert and/or otherwise jointly to falsely arrest, as well as to cover up their misdeeds.

4. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

### **JURISDICTION AND VENUE**

5. Within 90 days of the incidents alleged in this complaint, Plaintiff served upon Defendant, THE CITY OF NEW YORK, a Notice of Claim setting forth the name and post office address of Plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

6. More than 30 days have elapsed since Plaintiff's Notice of Claim was served on Defendant.

7. A hearing pursuant to §50(h) of the General Municipal Law was held.

8. That all conditions precedent to the bringing of this action have been complied with.

9. Venue is proper in the Supreme Court of the State of New York, Bronx County, because the acts in question occurred in the State of New York, Bronx County.

10. THE CITY OF NEW YORK is subject to personal jurisdiction in the Supreme Court of the State of New York, Bronx County.

### **PARTIES**

11. Plaintiff, RICHARD HAIRSTON (hereinafter "Plaintiff"), is a resident of the State of New York, County of the Bronx.

12. Plaintiff is an African American male.

13. THE CITY OF NEW YORK (or "the CITY") is a municipal corporation organized under the laws of the State of New York.

14. At all times relevant hereto, Defendant CITY, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel.

15. At all times here relevant, Defendant CITY was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

16. Defendant MICHAEL VASQUEZ was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

17. Defendant PIERRE SENAT was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

18. Defendant FRANCESCO MONASTRA was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

19. Defendant TATIANA CRUZ was at all relevant times, a police officer holding the rank of Sergeant, employed by the CITY OF NEW YORK through its NYPD.

20. Defendant LOUIS GUGLIELMO was at all relevant times, a police officer holding the rank of Sergeant, employed by the CITY OF NEW YORK through its NYPD.

21. Defendant JOHN/JANE DOES 1-10 were at all relevant times, uniformed police officers and/or NYPD officials, employed by the CITY OF NEW YORK through its NYPD, whose real names are not known.

22. Defendant JOHN/JANE DOES 1-10 were at all relevant times knew of the constitutional violations against Plaintiff but assisted and carried out the coverup of same including

by transmitting and/or creating false information, which was transmitted to the District Attorney, destroying evidence, and otherwise preventing the truthful and accurate reporting of the incident.

23. The Individual Defendants were at all relevant times, assigned to NYPD's Community Response Team or (CRT).

24. Despite the NYPD's repeated promises, including as recently as 2020, to disband its so-called "anti-crime" units which have held black and brown communities under siege like an invading force, many of these units were simply reconfigured into what is now known as SRG and CRT as recently as 2022.

25. Like the SRG and the anti-crime units that came before 2022, including SNEU (Street Narcotics Enforcement Unit), SCU (Street Crime Unit), IRT (Impact Response Team), and "Conditions" Units, CRT has higher than average incidents of excessive force, violence, unlawful arrests, and unconstitutional stops of mostly black and brown New Yorkers.

26. These units were once described by former Commissioner Dermott Shea as "part of an outdated policing model that too often seemed to pit officers against the communities they served, [...] involved in a disproportionate number of civilian complaints and fatal shootings by the police" as paraphrased by the New York Times.<sup>1</sup>

27. CRT is no different than the anti-crime units that came before it and still conducts abusive and unconstitutional stops and arrests of citizens in mostly black and brown neighborhoods and has high rates of the use excessive force.

28. At all times mentioned herein the Individual Defendants were acting under color of state law.

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<sup>1</sup>A. Watkins, "N.Y.P.D. Disbands Plainclothes Units Involved in Many Shootings" NY Times, June 15, 2020, available at: <https://www.nytimes.com/2020/06/15/nyregion/nypd-plainclothes-cops.html?smid=url-share>

29. Defendant THE CITY OF NEW YORK is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants pursuant to the doctrine of *respondeat superior*.

**FACTUAL ALLEGATIONS**

30. On June 27, 2023, Plaintiff was near his vehicle which was lawfully parked on the roadway known as Tiffany Street in Bronx, New York.

31. Plaintiff's vehicle was parked near the property identified as 735 Tiffany Street, Bronx, New York.

32. Defendants, MICHAEL VAZQUEZ, PIERRE SENAT and FRANCESCO MONASTRA were in an unmarked police vehicle which was traveling toward Plaintiff's parked vehicle.

33. Upon information and belief, Defendants VAZQUEZ, SENAT, and MONASTRA, were chasing or otherwise pursuing an individual on an ATV.

34. Upon information and belief, Defendants, VAZQUEZ, SENAT and MONASTRA, recklessly, carelessly, and negligently, caused the individual operating the ATV to collide into Plaintiff's vehicle and then into a nearby tree.

35. Defendants, VAZQUEZ, SENAT and MONASTRA exited their vehicle and arrested the individual who was riding the ATV.

36. Plaintiff was nearby and believed his vehicle was damaged in the collision.

37. Plaintiff began to videotape the vehicles and the scene including the officers.

38. Plaintiff was at all relevant times herein, permitted to film the scene, including the vehicles involved, the officers, and to obtain their information.

39. At no time did Plaintiff interfere with the arrest.

40. At no time did Plaintiff disobey a lawful order.
41. Defendants VAZQUEZ and MONASTRA had already apprehended and fully cuffed the apprehended individual.
42. Upon information and belief, Defendants were angry and/or upset that Plaintiff was recording them and the scene.
43. Defendant VAZQUEZ who was believed to be driving the police car which caused the collision, began arguing with Plaintiff.
44. Defendant VAZQUEZ denied that he caused the collision.
45. Upon information and belief, Defendants believed that the negligent, careless, and reckless, operation of the police vehicle had damaged Plaintiff's vehicle.
46. Upon information and belief, Defendants had damaged the police vehicle as well as other vehicles.
47. Defendant VAZQUEZ falsely accused Plaintiff of being an associate of the apprehended individual even though he had no reason to believe that was the case.
48. Without any justification, Defendants unlawfully attempted to stop Plaintiff from recording the scene and his involvement.
49. Defendant VAZQUEZ ordered Plaintiff to "get out of the street" despite the fact that he was lawfully present near his car attempting to record the scene and the potential damage to his vehicle.
50. As determined by the Bronx County District Attorney, VAZQUEZ did not issue a lawful order to Plaintiff and had no right to arrest him as he was not obstructing traffic.
51. Plaintiff told Defendant VAZQUEZ, that he was not going to get out of the street because he was not doing anything wrong and was merely documenting the damage to his vehicle

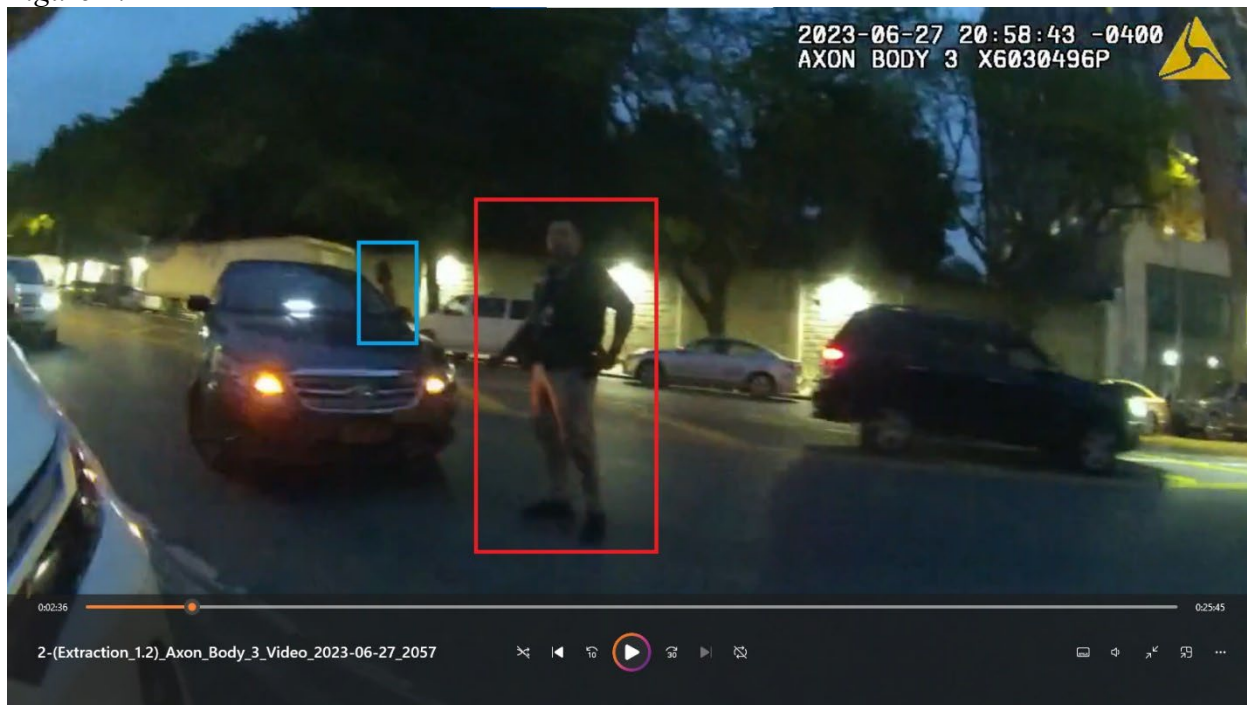
and scene of the incident.

52. Defendant VAZQUEZ had no response or explanation except to begin calling Plaintiff a “smartass” and threatened to arrest him for “standing in the street.”

53. Upon information and belief, Defendants knew that Plaintiff was not obstructing traffic but was filming their license plate and the damage to the police vehicle which would inculcate them in causing the collision.

54. “Figure 1” below is a true and accurate screenshot of Plaintiff (highlighted in blue) and Defendant VAZQUEZ (highlighted in red) from the body worn camera of Defendant SENAT depicting Plaintiff walking back to his vehicle after filming the police vehicle.

*Figure 1:*



55. Defendant VAZQUEZ then said “get out of the street” three times in rapid succession.

56. As noted above, the Bronx County District Attorney determined that Defendant Vazquez was not issuing a lawful order in doing so.

57. Defendants knew that Plaintiff was not intentionally engaging in behavior that caused a public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof.

58. Defendants knew that Plaintiff was not obstructing traffic.

59. Defendants knew that Plaintiff had the right to videorecord or photograph his vehicle, the scene of a traffic collision, the arrest, and even Defendants.

60. Upon information and belief, Defendant VAZQUEZ then said to Defendant SENAT, “let’s ‘C’ him” referring to the issuance of a retaliatory C summons.

61. Defendant VAZQUEZ then approached Plaintiff as he was walking back to his vehicle and demanded that Plaintiff put his hands behind his back for “standing in the street.”

62. Upon information and belief, Defendants lacked reasonable suspicion or probable cause to seize, and otherwise stop Plaintiff and/or sought to stop him for reasons other than those permitted by law incident to retaliate against him for lawfully filming them.

63. At all relevant times herein, Defendants VAZQUEZ, SENAT and MONASTRA acted in concert.

64. Defendants failed to intervene to prevent the unconstitutional acts of their co-Defendants.

65. Defendants VAZQUEZ and SENAT proceeded to unlawfully grab Plaintiff and bring him to his knees.

66. Plaintiff asked why he was being arrested and complained about his unlawful arrest but did not resist or attempt to resist the officers and even attempted to give Defendant VAZQUEZ and SENAT his phone.

67. Plaintiff did not strike nor attempt to strike any officer.

68. Defendant VAZQUEZ, without warning or justification, grabbed Plaintiff, lifted

him off of the ground, and violently propelled Plaintiff's head, neck, and upper body on to the street in the same manner as a mixed martial arts fighter would in performing a "suplex."

69. Figures 2 and 3 below are true and accurate screenshots from a bystander video showing Defendant VAZQUEZ performing the "suplex" like assault and battery on Plaintiff with the assistance of Defendant SENAT.

*Figure 2:*



*Figure 3:*



70. Defendant VAZQUEZ then mounted Plaintiff's back and sat on him while Plaintiff was in a dangerous prone position, compressing his ability to breathe while Plaintiff's arms were pinned under his chest.

71. While Plaintiff was defenseless on his stomach, Defendants SENAT and VAZQUEZ then began repeatedly assaulting, battering, and using excessive force against Plaintiff about the head, face, and body.

72. Figures 4 through 7 below contain true and accurate screenshots from a bystander video showing Defendants using excessive force against Plaintiff while he was prone on the ground under Defendant VAZQUEZ.

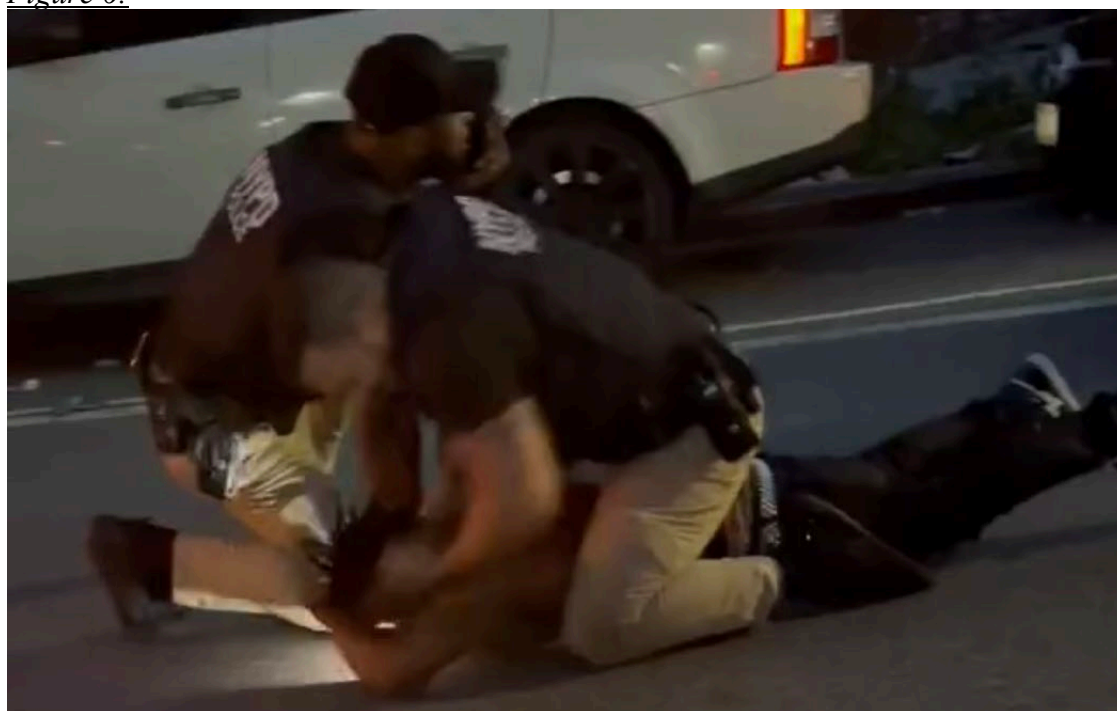
Figure 4



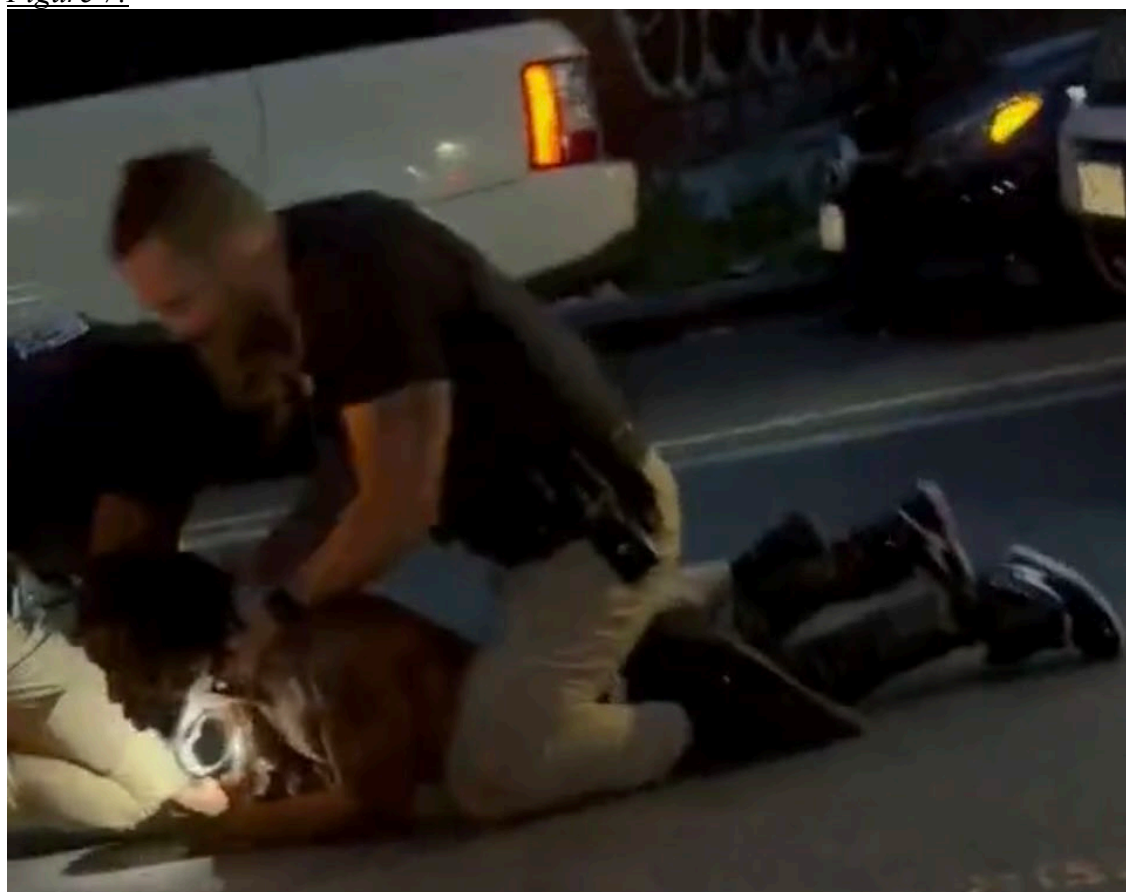
Figure 5:



*Figure 6:*



*Figure 7:*



73. Upon information and belief, Defendant VAZQUEZ intentionally deactivated his body worn camera as soon as he began to assault, batter, and use excessive force against Plaintiff.

74. At all relevant times, Defendants lacked the probable cause and reasonable suspicion to stop, question, detain, or arrest Plaintiff.

75. Defendants were unjustified in touching, battering, assaulting, or using force against Plaintiff.

76. Plaintiff was seriously injured during the false arrest, assault, battery, and use of excessive force.

77. Bystanders stopped to film the use of excessive force against Plaintiff.

78. Defendant CRUZ arrived at the scene with other CRT officers in another unmarked police vehicle.

79. Defendants CRUZ and GUGLIELMO approved Plaintiff's arrest despite Defendant's VAZQUEZ, SENAT and MONASTRA's inability to credibly explain lawful basis of Plaintiff's arrest and or how he received his injuries.

80. Upon information and belief, Defendant CRUZ, knew or should have known based on prior incidents and information, that Defendants had initiated an unlawful arrest and that she was violating the constitution by verifying their unlawful arrest.

81. Upon information and belief, Defendant CRUZ, knew or should have known based on prior incidents and information, that Defendants had used excessive force against Plaintiff.

82. Defendants acting in concert seized Plaintiff's family vehicle without probable cause or reasonable suspicion, drove it back to the precinct, and conducted an illegal search of its contents, attempting to find some reason to justify an arrest they knew was false.

83. Defendants accessed the NYPD's databases at the scene through their phones after

Plaintiff was arrested to attempt to justify an arrest, they knew was false.

84. Defendant MONASTRA was present on scene and witnessed the entirety of the events leading up to Plaintiff's arrest but failed to intervene and/or otherwise prevent Plaintiff being assaulted and battered by his fellow officers.

85. Upon information and belief, Defendant GUGLIELMO was shown the bystander video and knew that Plaintiff had been falsely arrested and that excessive force was used against him but refused to release him or report the incident.

86. Upon information and belief, Defendant GUGLIELMO assisted Defendants in filling out false paperwork and in the transmission of incomplete and/or false paperwork and records to the District Attorney.

87. Defendants knew that Plaintiff had force used against him and that he was injured but either refused to report same or to transmit this information to the district attorney's office.

88. Plaintiff, who was obviously injured, was arrested and transported to the 41<sup>st</sup> Precinct by Defendants.

89. There, Plaintiff complained several times that he was feeling dizzy while Defendant SENAT was questioning him.

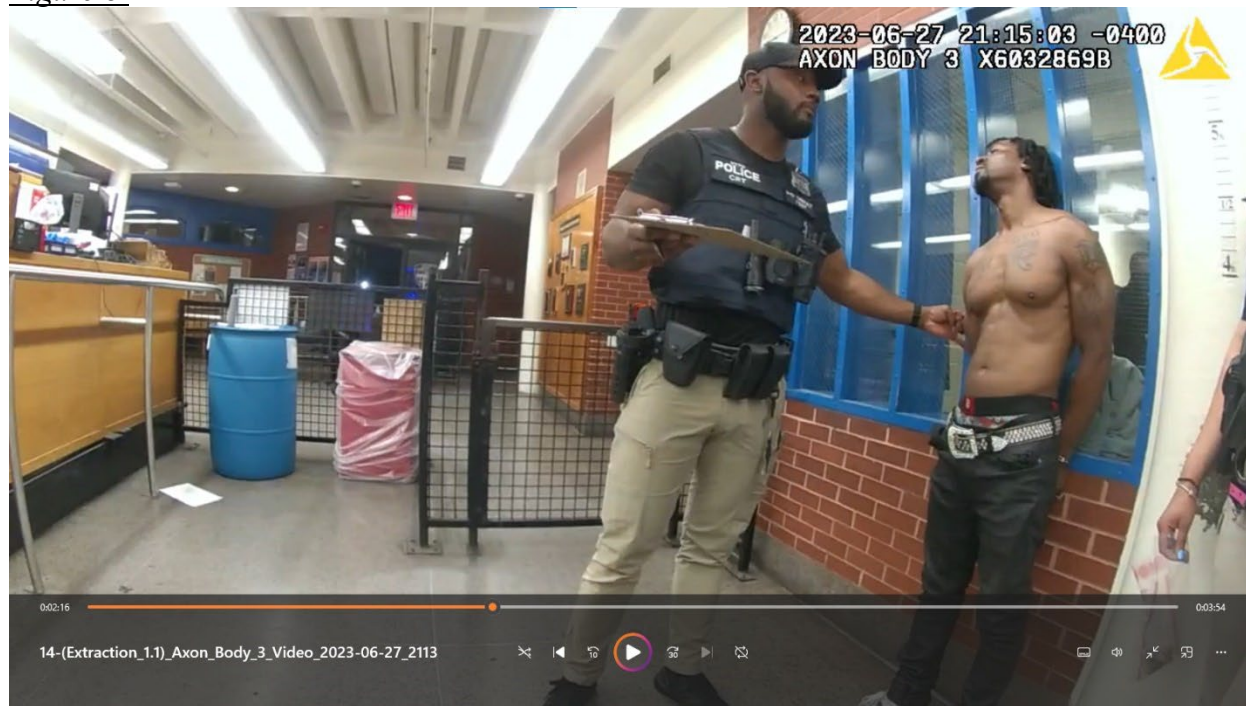
90. Plaintiff was clearly having difficulty understanding simple questions that Defendant SENAT was asking him to the point where SENAT had to repeat the questions back to Plaintiff several times.

91. Upon information and belief, Defendant SENAT knew or should have known Plaintiff's symptoms were indicative of head trauma due to the many violent strikes to the head Plaintiff had received during the use of excessive force.

92. Figure 8 below is a true and accurate screenshot of Plaintiff and Defendant SENAT

from the body worn camera of an officer who was present.

Figure 8:



93. Defendant SENAT, who knew that Plaintiff was violently thrown onto his head and then beaten about the head and face, is seen in Figure 8, shaking Plaintiff awake as he began to lose consciousness due to his injuries.

94. Upon information and belief, Defendants failed to report that force had been used against Plaintiff or to investigate the use of force against him.

95. Defendants knew or should have known that the false statements made in official paperwork would be submitted to the District Attorney and used to prosecute Plaintiff and/or support the false statements made by the defendants.

96. Anyone viewing the footage from Defendants' Body Worn Cameras (BWC) including GUGLIELMO and CRUZ knew that the force used against Plaintiff was not justified.

97. Anyone viewing the footage from Defendants' Body Worn Cameras (BWC) including GUGLIELMO and CRUZ knew that Plaintiff's arrest was performed without probable

cause.

98. Upon information and belief, instead of acknowledging the unlawful acts that led to the Plaintiff's false arrest and the excessive force against him, Defendants attempted to cover up these misdeeds by falsely charging Plaintiff with violating New York State Penal Law (N.Y. Pen. Law) § 195.05 (Obstructing Government Administration in the Second Degree), § 205.30 (Resisting Arrest), and § 240.20 (05) (Disorderly Conduct: Obstructing Traffic).

99. Upon information and belief, Defendants communicated with a representative of the District Attorney's Office and presented false information and/or evidence to the prosecutor despite knowledge that this false information would be used to prosecute Plaintiff.

100. Upon information and belief, the Bronx County District Attorney's Office reviewed the evidence presented to them and determined that all charges were facially insufficient and/or lacked probable cause and/or that the Defendants were not credible.

101. The District Attorney concluded after viewing the body camera videos that Plaintiff was not obstructing traffic as the Defendants had claimed.

102. The District Attorney concluded after viewing the body camera videos that Plaintiff did not interfere with the officers or any investigation.

103. The District Attorney concluded after viewing the body camera videos that Plaintiff's acts did "not rise to the level of a crime."

104. The District Attorney sent their decline to prosecute findings to the NYPD.

105. After the District Attorney declined to prosecute was released from Central Booking without being arraigned.

106. At all times hereinafter mentioned, Defendants had a duty to intervene in the unlawful acts and misconduct committed by their co-Defendants but failed to do so.

**FACTS RELEVANT TO PLAINTIFF'S *MONELL* CLAIM  
AND RELATED STATE LAW CLAIMS**

107. Upon information and belief, the CITY knew or reasonably should have known that Defendants were unfit to be uniformed law enforcement officers prior to the date of incident.

108. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents of misconduct.

109. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents of perjury and/or the submission of false and/or inaccurate misstatements in official records.

110. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents that were proof or indicia of corruption.

111. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents that were proof or indicia of violent propensities to injure, abuse, and/or commit civil rights violations.

112. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior behavior that was proof or indicia of an inability to control their anger and/or inappropriate behavior.

113. The CITY failed to investigate the prior incidents, complaints, and/or information it had regarding Defendants.

114. The CITY failed to conduct proper background investigations of Defendants at the time they were hired.

115. The CITY failed to conduct proper investigations of Defendants after receiving serious complaints about Defendants behaviors, propensities, and/or conduct.

116. The CITY failed to intervene to reprimand, retrain, punish, and terminate

Defendants.

117. These failures are not isolated incidents, but rather, the natural and probable consequence of the CITY's longstanding failure to investigate, monitor, punish, and otherwise intervene in the misconduct, corruption, and criminal acts committed by members of the NYPD, including Defendants.

118. These failures are also the natural and probable consequence of the CITY's longstanding failure to encourage, assist, and train its officers to report and intervene in misconduct they observe and/or failure to punish officers for failing to intervene as required by law, and department guidelines.

119. Despite the prior findings by the Mollen Commission which exposed mismanagement, coverup, and corruption in the punishment precinct level disciplinary process, the CITY allowed the majority of the incidents involving Defendants to be "resolved" at the precinct or borough level instead of to be investigated by the Internal Affairs Bureau.

120. The CITY, through its NYPD, has reduced the effectiveness of its internal discipline through the use of the Threat, Resistance, Injury (TRI) report process which allows officers, with the assistance of a supervisor, to ensure that IAB is not called to investigate incidents.

121. The CITY's failures stretch back at least as far as the Mollen Commission which revealed rampant abuse, corruption, and criminal activity by NYPD officers and a persistent failure and/or refusal to investigate these acts and omissions in order prevent oversight and/or a broadening of investigations into the misconduct endemic to of the NYPD and/or to prevent embarrassment of the department via public awareness and news reporting of incidents of misconduct which often results in the termination of both high-ranking and rank-and-file members.

**I. For Nearly 30 Years, the CITY has Prevented Significant Independent Inquiry into the NYPD**

122. On July 7, 1994, chaired by the Hon. Milton Mollen, the eponymous Mollen Commission, released its public final report titled “The City of New York Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department” [hereinafter “Mollen Comm’n Final Report” or “Final Report”].

123. The Mollen Commission’s findings, as discussed more thoroughly below, were explosive, and evidenced a systematic, and sometimes intentional failure, at every level of the NYPD to investigate corruption, abuse, and misconduct by its officers at all levels, including high-ranking members of the NYPD.

124. The corruption, abuse, and misconduct exposed by the Mollen Commission included, but was not limited to: police officers robbing drug dealers, selling drugs and guns that they had stolen, randomly assaulting and battering citizens for fun, raping sex workers, running protection for gang members and drug dealers, engaging in bribery scams including with tow truck operators and those they issued summonses to, drinking and doing drugs while on and off duty, burglarizing/robbing/stealing guns, drugs, money, and valuables from citizens, tampering with evidence including carrying “drop guns” and other evidence to plant on arrestees and/or those they may shoot, frequently committing perjury and/or submitting false information to prosecutors to support false arrests, to secure convictions, and/or cover up their misdeeds, as well as a general wide-spread refusal to report colleagues who commit misconduct and crimes.<sup>2</sup>

125. Prior to the Mollen Commission, the Knapp Commission (1970-1973), the Helfand Investigation (1949-1950), the Seabury Investigation (1932), the Curran Committee (1912), and

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<sup>2</sup> Mollen Comm’n Final Report, (July 7, 1994) available online at: [www.nyc.gov/assets/doi/images/content/timeline/MollenCommissionNYPD.pdf](http://www.nyc.gov/assets/doi/images/content/timeline/MollenCommissionNYPD.pdf) (last accessed Nov. 26, 2023).

the Lexow Commission (1895) each exposed patterns of corruption and abuse at the NYPD.

126. Nearly every twenty years, the then existing patterns and practices of widespread corruption and abuse at the NYPD were exposed by these independent commissions.

127. It has been almost 30 years since the Mollen Commission issued its final report.

128. Following the Mollen Commission's bombshell hearings and reports, the CITY formed the Commission to Combat Police Corruption (CCPC) which is allegedly an independent panel formed to monitor and evaluate the anti-corruption efforts of the NYPD which were found to be largely ineffective, at times intentionally so, by the Mollen Commission.

129. The CCPC has no authority to investigate instances of police corruption or misconduct, it merely issues annual reports on whether, in its determination, the NYPD is effectively monitoring investigating and corruption, based on the information that NYPD deigns to offer it.

130. All members of the CCPC are appointed by the Mayor of the CITY and serve at his pleasure.

131. The CCPC cannot even issue a subpoena unless the Department of Investigation (DOI), a mayoral agency of the CITY, and thus, part of the CITY itself, allows it to.

132. Upon information and belief, the CCPC was not created for its stated reasons alone, but also and/or solely to offer the appearance of sufficient independent oversight in order to avoid the appointment of another commission like the Mollen Commission which would have the power to issue subpoenas, conduct independent investigations, and to make findings supported by evidence.

133. As discussed by the Mollen Commission at length, the NYPD has a pattern and practice of endangering the safety of the public by allowing officers who commit misconduct

and/or are otherwise abusive and/or corrupt, to avoid detection, prosecution, discipline, and termination, to spare the department potential embarrassment and/or to prevent civil and/or criminal consequences for those who commit, support, and/or turn a blind eye to rampant misconduct, corruption, and abuse at NYPD.

134. An independent commission, with at least the powers and independence granted to the Mollen Commission is both long overdue and desperately needed.

135. The Mollen Commission's Final Report is incorporated hereto by reference.<sup>3</sup>

136. The CITY received the findings, testimony, evidence, and facts relied upon and reported by the Mollen Commission and has had the findings in its possession for nearly thirty years.

## II. Of "Rats" and Policemen:

137. As succinctly stated by the Mollen Commission, "the problem of police corruption extends far beyond the corrupt cop. It is a multi-faceted problem that has flourished in parts of our City not only because of opportunity and greed, but because of **a police culture that exalts loyalty over integrity; because of the silence of honest officers who fear the consequences of "ratting" on another cop no matter how grave the crime...**"<sup>4</sup>

138. Consistent with the issues reported by the Mollen Commission thirty years ago, officers today do not report misconduct, abuse, and criminal acts of their fellow officers for fear of being "labeled a "rat" [and because they] lack[] confidence in the Department's commitment to uncover corruption and maintain confidentiality."

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<sup>3</sup> Portions of the Final Report are available at the link at FN1. Plaintiff is limited by the facts presently known and available to Plaintiff and will seek discovery of the full Mollen Commission files as in the CITY's possession during discovery.

<sup>4</sup> Mollen Comm'n Final Report at FN1, page 4 (emphasis added).

139. The Mollen Commission also noted that officers had told them “that their careers would be ruined” if they reported a fellow officer’s misconduct and that “[t]he evidence shows that this belief was not unfounded.”

140. As in the days of the Mollen Commission, the NYPD continues to ensure it is difficult and dangerous for officers to report misconduct.

141. Despite the NYPD’s actual knowledge for more than thirty years that members of its force were in large numbers failing, to report corruption, fraud, abuse, misconduct and criminal acts by their fellow officers, and thus, themselves committing unlawful acts, civil rights violations, and misconduct, the CITY has done little, if anything, to make officers more likely to intervene in the unlawful acts of their colleagues or even to report same.

142. Here, the individual Defendants as well as the numerous other NYPD officers witnessed the force used against Plaintiff, and knew about the falsity of his arrest and the false statements made against him, but did nothing, and said nothing, thereby ensuring that the blatant constitutional violations committed in their presence continued.

143. Patrol Guide 221-10 contains the following three sentences which have remained virtually unchanged for decades: “Failure to intervene in the use of excessive force or report excessive force or failure to request or ensure timely medical treatment for an individual is serious misconduct that may result in criminal and civil liability and will result in department discipline up to and including dismissal. If a member of service becomes aware of the use of excessive force or failure to request or ensure timely medical treatment for an individual, the member must report such misconduct to the Internal Affairs Bureau Command Center. This report can be made anonymously.”<sup>5</sup>

144. The policy does not provide any information on how to contact IAB or what

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<sup>5</sup> NYPD Patrol Guide 221-10.

protections will be given to officers who cooperate with “the rat squad” as IAB is commonly referred to by officers.

145. The policy does not discuss the protections for whistleblowers or provide any information that would allow an officer to feel comfortable reporting a use of force that was unconstitutional given that they too will be deemed a “rat” for doing so.

146. The policy does not even include the number that officers can call to make such a report.

147. The NYPD does not provide any elaboration on this three-sentence policy, buried among thousands of pages in the Patrol Guide.

148. Despite the three-sentence policy promulgated by the CITY, the actual custom and practice of the NYPD is that when an NYPD officer reports on another officer, they are a “rat” forever and face perpetual ostracization.

149. The NYPD even has a custom and practice of identifying and thereby deriding an officer who seeks to follow the rules, including the Patrol Guide, the Constitution, and the laws of the State of New York, as a “shakebox” or “shakey.”

150. Labeling an officer a “shakebox” is shorthand for identifying that the officer is not “on the level” and/or not a “good cop” who and can be trusted with preferential assignments or even invited to afterwork events.

151. Being labeled “a rat” is worse still and is often the death knell of any NYPD career.

152. Reporting fellow officers in an organization as insular as the NYPD, is regarded as an act of social deviance, that feels like a criminal act and is often treated like one.

153. As former Detective Jeffrey McAvoy recalled to the New York Times, when he called IAB in 2008 to report a lieutenant of stealing thousands of dollars from a drug dealer, he was

physically ill at the idea of following this policy: “I went to the bathroom about a dozen times and threw up, actually physically threw up, before I made the call.”<sup>6</sup>

154. Other officers labeled “rats” have been bullied, harassed, and ostracized by those they once considered not just coworkers, but family.

155. Some officers labeled “rats” or who have testified about the crimes of other officers have been pushed out of the department, and some have attempted suicide.

156. In 2011, a NYPD officer and union delegate allegedly touched the third rail of the one train in a suicide attempt after being subpoenaed to testify in the Bronx ticket fixing inquiry.

157. Being labeled a “rat” also comes with a promise of physical danger or death.

158. As former NYPD police officer Bernard Cawley put it when he testified before the Mollen Commission: “...it was the Blue Wall of Silence. Cops don’t tell on cops. And if they did tell on them, **just say if a cop decided to tell on me, his career’s ruined. He’s going to be labeled as a rat....And chances are if it comes down to it, they’re going to let him get hurt.**”<sup>7</sup>

159. To the extent there is any doubt, one need look no further than the 1971 shooting of NYPD whistleblower Frank Serpico, whose colleagues sent him on a solo undercover buy and bust where he was shot in the face and then refused to call a 10-13 or even an ambulance for him.

160. To this day, the shooting of Mr. Serpico and the suspected involvement of NYPD officers in retaliation for his reports of misconduct has not been fully investigated.

161. Moreover, despite providing training and instruction for literally every possible piece of paperwork that may be filled out and endless videos and tactical training scenarios for situations

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<sup>6</sup> Goldstein, J. N.Y. Times, (Jun. 24, 2012), “Officers, Exhorted to Report Corruption, Still Fear Retaliation” available at: <https://www.nytimes.com/2012/06/25/nyregion/new-york-police-officers-face-retaliation-for-reporting-corruption.html> (last accessed Feb. 26, 2024).

<sup>7</sup> Testimony of Bernard Cawley before the Mollen Commission available at: [https://youtu.be/L\\_1hxKgFsWw?si=JGtFz8lw2wmESKK1](https://youtu.be/L_1hxKgFsWw?si=JGtFz8lw2wmESKK1) (last accessed Nov. 26, 2023).

that most officers will never encounter, the NYPD appears to provide zero training or instruction on how to effectively intervene in excessive force, false arrest, and/or other misconduct and civil rights violations, or how to safely report their fellow officers.

162. The NYPD has failed to develop specific and realistic instruction or regular training on how to navigate detecting, intervening in, and reporting misconduct, including the use of excessive force.

163. The NYPD has also failed to investigate and discipline instances where officers are present for or know about misconduct, including excessive force, but fail to intervene and/or report it.

164. This sends a clear message that if an officer witnesses their fellow officer commit acts of corruption, misconduct, or even crimes – they should keep their mouth shut.

165. In fact, the Mollen Commission heard testimony that officers had been explicitly told at roll call “if you get caught, keep your mouth shut.”<sup>8</sup>

166. THE CITY OF NEW YORK knows to a moral certainty that failing to provide training and policies on how to intervene in and report misconduct make it unlikely that anyone will report misconduct or intervene to stop it from occurring.

167. THE CITY OF NEW YORK knows to a moral certainty that allowing these customs and practices to continue allows serious misconduct to go unreported and encourages officers, including those who witness misconduct, to present false evidence and/or false information in official reports and/or to the prosecution in order to assist in covering up misconduct.

168. THE CITY OF NEW YORK knows to a moral certainty that its acts and omissions will allow officers who commit significant misconduct, including civil rights violations, to remain on

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<sup>8</sup> Mollen Comm’n Final Report at \*3.

the job where they can harm people – including people like Plaintiff.

169. THE CITY OF NEW YORK knows to a moral certainty that failing to enact policies to make it easier and safer for officers to report misconduct will mean that most constitutional violations, including egregious violations involving deaths and horrific acts, will go unreported or will be actively covered up.

170. THE CITY OF NEW YORK has done nothing to revise its policies or training to prevent these inevitable consequences of its failures from harming citizens like Plaintiff.

### **III. 'TRI' Not to Call IAB:**

171. Following the July 17, 2014, homicide of Eric Garner, and the November 20, 2014, homicide of Akai Gurley, both at the hands of NYPD officers, the NYPD made significant changes to its investigations of excessive force.

172. Those changes have, upon information and belief, prevented the independent and uncorrupted investigation into acts of excessive force and assisted officers in covering up incidents of excessive force, including by preventing IAB from investigating serious incidents like the one at issue here.

173. Prior to 2015, when a NYPD officer used excessive force that caused death or significant injury, the incident resulted in a “callout” to IAB who would dispatch officers to interview injured arrestees or investigate deaths independent of the rest of the NYPD.

174. In 2015, the NYPD developed the Force Investigations Division (FID) which was allegedly created to investigate uses of force.

175. The policy changes mandated that where NYPD officers discharged their firearms, and/or where an arrestee died, or was likely to die following an interaction with NYPD, the FID would have sole jurisdiction to investigate whether the force used was justified.

176. The policy changes essentially divested the authority of IAB to investigate any deaths at the hands of NYPD.

177. FID is not independent in the manner that IAB was intended to be.

178. Upon information and belief, the true purpose of FID was to usurp the jurisdiction of IAB in serious force cases, including all death cases so that the investigation can be guided to find that the officers were justified in using force, including deadly force.

179. IAB investigations of custodial deaths had led to multiple prosecutions of NYPD officers prior to the development of FID.

180. Upon information and belief, to date, FID's investigations have not led to any prosecutions of NYPD officers.

181. Upon information and belief, FID spends most of its extensive resources gathering evidence to justify uses of excessive force, discredit witnesses who do not support the NYPD's narrative, delaying questioning of the subject officers, and controlling evidence (including in allowing significant evidence to be ignored) collection from crime scenes of serious including fatal, uses of police force.

182. Upon information and belief, to date, FID has consistently found that every NYPD officer who used fatal force was justified in doing so.

183. Upon information and belief, to date, FID has consistently found that every NYPD officer who used fatal force was justified in doing so.

184. Upon information and belief, FID is consistently staffed with investigators who lack the knowledge, skills, abilities, and work-ethic to conduct a complex investigation, and/or those who have significant force histories, corruption histories, and/or credibility issues – thus leaving investigations vulnerable to both substandard police work and corruption.

185. On May 27, 2016, the NYPD revised its Force Policy reporting guide and implemented the TRI report.

186. “Figure 9” below is a true and accurate copy of the first page of the May 27, 2016, Force Policy Revision:

Figure 9:

## PATROL GUIDE 221 TACTICAL OPERATIONS

### USE OF FORCE – INVESTIGATIVE RESPONSIBILITY AND REPORTING GUIDE

| LEVEL OF FORCE    | EXAMPLES OF FORCE                                                                                                                                                                                                                      | OR | TYPE OF INJURY                                                                                                                                                                                                                | SUPERVISOR                                                                                                                     | METHOD OF REPORTING                                                                           |
|-------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------|
| LEVEL 1           | <ul style="list-style-type: none"><li>• Hand or foot strike</li><li>• Forcible take-down</li><li>• Wrestling a subject to ground</li><li>• OC spray</li><li>• CEW/Taser in cartridge mode</li><li>• Mesh restraining blanket</li></ul> |    | <ul style="list-style-type: none"><li>• Physical injury</li><li>• Alleged<sup>1</sup> excessive Level 1 force with no injury</li></ul>                                                                                        | Immediate Supervisor<br>(Must be one rank above the subject officer)<br><br><i>CEW/Taser = Lieutenant or Above<sup>3</sup></i> | Threat, Resistance, or Injury Incident Worksheet                                              |
| LEVEL 2           | <ul style="list-style-type: none"><li>• Intentional striking of a subject with an object (e.g. impact weapon)</li><li>• Police canine bite</li><li>• CEW/Taser in drive stun mode</li></ul>                                            |    | <ul style="list-style-type: none"><li>• Substantial physical injury</li><li>• Alleged or suspected<sup>2</sup> excessive force with physical or substantial physical injury</li><li>• Attempted suicide by prisoner</li></ul> | C.O./X.O./Duty Captain<br>(Must respond to scene)<br><br><i>Borough Investigations Unit May Assist</i>                         | Threat, Resistance, or Injury Incident Worksheet & Investigating Supervisor Assessment Report |
| LEVEL 3           | <ul style="list-style-type: none"><li>• Deadly physical force<ul style="list-style-type: none"><li>◦ Physical force that is readily capable of causing death or serious physical injury</li></ul></li></ul>                            |    | <ul style="list-style-type: none"><li>• Serious physical injury</li><li>• Alleged or suspected excessive force with serious physical injury</li><li>• Attempted suicide by prisoner with serious physical injury</li></ul>    | Internal Affairs Bureau<br>(Must respond to scene)                                                                             | Threat, Resistance, or Injury Incident Worksheet & Investigating Supervisor Assessment Report |
| FIREARM DISCHARGE | <ul style="list-style-type: none"><li>• Discharge of a firearm</li></ul>                                                                                                                                                               |    | <ul style="list-style-type: none"><li>• Person dies</li><li>• Seriously injured and likely to die immediately prior to police custody, during apprehension, or while in police custody</li></ul>                              | Force Investigation Division<br>(Must respond to scene)                                                                        | Threat, Resistance, or Injury Incident Worksheet & Typed Letterhead (UF49)                    |

>ALLEGATIONS<sup>1</sup> of excessive force are typically made by civilian witnesses or subjects while SUSPICION<sup>2</sup> of excessive force typically arises from a supervisor's initial assessment or subsequent investigation into an incident.

>Discharge of a CEW/Taser requires the Immediate/Investigating Supervisor to be in the rank of Lieutenant or above (discharges by ESU may be handled by a Sergeant).<sup>3</sup>

>Ordering a subject to lay on the ground or guiding them in a controlled manner, drawing your firearm, using Velcro restraint straps, or using a polycarbonate shield to restrain someone is not considered a reportable use of force in the context of this procedure.

>If one incident contains multiple MOS using varying levels of force or non-MOS receive varying levels of injury, the supervisor responsible for the highest force/injury level will conduct the investigation.

>A TRI-Investigating Supervisor Assessment Report is completed by the CO/XO/Duty Captain or IAB to document the results of their investigation of a Level 2 or 3 incident.

FORCE POLICY REVISION

REVISED MAY 27, 2016

187. Prior to the use of the TRI report, IAB was called to the scene of in-custody injuries that resulted in a visit to the hospital.

188. With the advent of the TRI report, if a supervisor claims or asserts that an injury occurred before the arrest, there is no investigation.

189. With the advent of the TRI report, if a supervisor claims or asserts that an injury was not serious, there is no IAB investigation unless the officers admit they used deadly physical force.

190. With the advent of the TRI report, if a supervisor claims or asserts that an injury was not serious, even where the injury required a visit to the hospital, but the arrestee was not admitted, there is no IAB investigation unless the officers admit they used deadly physical force (except for a firearm discharge which is only investigated by FID).

191. This new scheme results in fewer investigations into force being conducted by IAB and therefore, decisions about whether force was excessive are being handled at the precinct or borough level.

192. The Mollen Commission explicitly warned about this type of approach which can lead to a lack of investigation at the precinct and borough level when incidents, like the one at hand, are not investigated or not sufficiently investigated or categorized.<sup>9</sup>

193. This allows officers who are serial offenders of force incidents and other corruption to go undetected in a similar manner to the way that the similar setup including borough investigations and “tickler files,” allowed officers like Bernard Cawley and Michael Dowd to engage in uncontrolled acts of corruption and abuse.

194. As the Mollen Commission demonstrated, the officers with the most complaints including even complaints for discourtesy and suspected corruption and theft, were the most likely to be engaged in rampant abuse including excessive force, corruption, and criminal activity.

195. Upon Information and belief, the City’s failure to sufficiently investigate matters relating to the Individual Defendants directly led to the violation of Plaintiff’s civil rights complained herein.

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<sup>9</sup> See Mollen Comm’n Final Report, Section V “Fragmenting, Minimizing, and Concealing Police Corruption Cases” at 90-100.

**ALLEGATIONS RELATED TO DEFENDANTS' CIVIL CONSPIRACY**

196. Defendants engaged in a civil conspiracy, and/or common scheme which connects and/or links each Defendant with each of the causes of action alleged herein.

197. Defendants conspired and/or otherwise agreed among themselves and/or other agents, servants, and/or employees of the CITY, to cover up the unlawful acts committed against Plaintiff during and after his arrest.

198. Upon information and belief, Defendants carried out overt acts in furtherance of their conspiracy and/or agreement to cover up their misconduct, including the retaliatory false arrest excessive force used against Plaintiff.

199. Upon information and belief, Defendants carried out these acts intentionally, and in furtherance of their conspiracy.

200. The Defendants were not present during the initial incident, ratified the conduct thereafter by joining in the conspiracy to cover up the misconduct.

201. Upon information and belief, Defendants had carried out similar conspiracies on prior dates.

202. Upon information and belief, each conspirator engaged in these acts to protect themselves and their colleagues, but perhaps more so, because of deep-seated patterns and practices to do so in order to protect the reputation of the NYPD and its officers.

203. Defendants' conspiracy resulted in damage and/or injury to Plaintiff.

204. Defendants' conspiracy links each Defendant to each of the state law causes of action described below.

**DAMAGES**

205. As a direct and proximate result of conduct of Defendants heretofore and hereafter

set forth, Plaintiff suffered, and continues to suffer, injuries and damages that exceed all jurisdictional limits of the lower courts, including, but not limited to:

- a. violation of Plaintiff's rights under the Fourth, and Fourteenth Amendments to the United States Constitution
- b. violation of Plaintiff's rights under New York State and City law;
- c. severe physical injuries and pain and suffering;
- d. emotional distress, including fear, embarrassment, frustration, extreme inconvenience, and anxiety;
- e. loss of liberty and unlawful confinement;
- f. economic damage and loss;

206. Defendants are not entitled to raise the defense of contributory negligence for any claims brought pursuant to statute including 42 U.S.C. § 1983 or statute.

207. Pursuant to CPLR 1603, all causes of action alleged herein are exempt from the operation of CPLR 1601 by reason of one or more of the exemptions provided in CPLR 1602, including but not limited to, CPLR 1602(2), CPLR 1602(5), 1602(7) and 1602(11), and because Article 16 does not apply to civil rights claims, thus precluding defendants from limiting their liability by apportioning some portion of liability to any joint tortfeasor.

#### **FIRST CAUSE OF ACTION**

##### **Excessive Force Pursuant to 42 U.S.C. § 1983**

##### ***Against the Defendants VAZQUEZ, SENAT, and MONASTRA***

208. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

209. At all times relevant herein, Defendants MICHAEL VAZQUEZ, PIERRE SENAT, and FRANCESCO MONASTRA were acting under color of state law.

210. At all times relevant herein, the Defendants' actions deprived Plaintiff of rights, privileges, and immunities secured by the laws of the United States and the United States Constitution.

211. At all times relevant herein, the Defendants VAZQUEZ and SENAT intentionally, and without justification or probable cause to do so, seized and/or confined Plaintiff in an excessive manner, causing him physical injury.

212. At all times relevant herein, the force used by Defendants VAZQUEZ and SENAT was beyond that which was warranted by the objective circumstances at the time it was used.

213. At all times relevant herein, the Defendants including, MONASTRA observed the use of excessive force against Plaintiff but failed to intervene despite having the ability to do so.

214. At all times relevant herein, the Individual Defendants failed to intervene in each other's obviously illegal actions.

215. At all times relevant herein, Defendants acts and omissions in using excessive force and/or failing to intervene in the use of excessive force against Plaintiff amounted to punishment without due process.

216. Defendants' conduct deprived Plaintiff of his right under the Fourth and Fourteenth Amendments to the United States Constitution to be free from excessive force.

217. Defendants' conduct deprived Plaintiff of his right under the Fourth and Fourteenth Amendments to the United States Constitution to be free from punishment without due process of law.

218. Defendants' conduct deprived Plaintiff of his rights pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.

219. Plaintiff was injured as a direct and proximate result of Defendants' violation of his rights, in an amount that exceeds the jurisdictional limits of all lower courts.

**SECOND CAUSE OF ACTION**

**Assault and Battery  
*Against all Defendants***

220. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

221. Defendants' intentional conduct placed Plaintiff in imminent apprehension of harmful and/or offensive touching.

222. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him.

223. Defendants used excessive and otherwise unjustified force against the plaintiff.

224. The mere touching of Plaintiff throughout his arrest until his release was an assault and battery due to the lack of probable cause for his arrest.

225. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants and those officers who failed to intervene, pursuant to the doctrine of *respondeat superior*.

226. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

**THIRD CAUSE OF ACTION**

**False Arrest/Unlawful Imprisonment  
Pursuant to 42 U.S.C. § 1983  
*Against All Individual Defendants***

227. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

228. At all times relevant herein, the Individual Defendants were acting under color of state law.

229. At all times relevant herein, the Individual Defendants' actions deprived Plaintiff of rights, privileges, and immunities secured by the laws of the United States and the United States Constitution.

230. At all times relevant herein, the Individual Defendants' intentionally, and without probable cause to do so, seized and/or confined Plaintiff and his property.

231. At all times relevant herein, Plaintiff was aware of the Individual Defendants' seizure and/or confinement of Plaintiff's person and property and did not consent to it.

232. At all times relevant herein, the Individual Defendants failed to intervene to stop the false arrest of Plaintiff and failed to release him from custody despite knowing his arrest was not based on probable cause.

233. Defendants' conduct deprived Plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.

234. At all times relevant herein, the Individual Defendants deprived Plaintiff of his rights under the Fourth and Fourteenth Amendments to the United States Constitution.

235. Plaintiff was damaged as a direct and proximate result of Defendants' violation of his rights, and in an amount that exceeds the jurisdictional limits of all lower courts.

**FOURTH CAUSE OF ACTION**

**False Arrest and Unlawful Imprisonment Pursuant State Law  
*Against all Defendants***

236. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

237. Defendants acting individually, and in concert with one another, intended to confine and/or seize Plaintiff.

238. Defendants acting individually, and in concert with one another, confined and/or seized Plaintiff.

239. Plaintiff was conscious of the confinement and/or seizure.

240. Plaintiff did not consent to Defendants' confinement and/or seizure.

241. Defendants' confinement of Plaintiff was not privileged.

242. Defendants lacked probable cause to confine and/or seize Plaintiff.

243. Defendants lacked the reasonable suspicion to confine and/or seize Plaintiff.

244. At all relevant times mentioned herein, Defendants acted extrajudicially, and without a warrant.

245. Defendants' seizure and/or confinement of Plaintiff subjected Plaintiff to a deprivation of liberty without probable cause.

246. The agents, servants, and employees of the CITY, including the Individual Defendants, knew or should have known that Plaintiff's confinement and/or seizure was unlawful and lacked probable cause, but failed to intervene to release him from the unlawful confinement despite their duties to do so.

247. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants and those officers who failed to intervene to release Plaintiff, pursuant to the doctrine of *respondeat superior*.

248. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

**FIFTH CAUSE OF ACTION**  
**Unreasonable Search and Seizure and Excessive Force**  
**Pursuant to Local Law 48 of 2021**  
***Against All Defendants***

249. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

250. Effective on May 24, 2021, Local Law 48 of 2021, amended the New York City Administrative Code (N.Y.C. Admin. Code §§ 8-801, *et seq.*) to create rights of security against unreasonable search and seizure.

251. Effective on May 24, 2021, Local Law 48 of 2021, amended the N.Y.C. Admin. Code (§§ 8-801, *et seq.*) to create rights of security against excessive force.

252. At all relevant times mentioned herein, Plaintiff was a person aggrieved as defined in N.Y.C. Admin. Code. § 8-801.

253. At all relevant times mentioned herein, Plaintiff was subjected to and/or subjected to the deprivation of his rights granted and/or protected by N.Y.C. Admin. Code. § 8-802.

254. At all relevant times mentioned herein, the Individual Defendants were covered individuals as defined in as defined in N.Y.C. Admin. Code. § 8-801.

255. At all relevant times mentioned herein, Defendant CITY was the employer of the Individual Defendants and law enforcement officers who violated Plaintiff's rights as alleged herein.

256. At all relevant times mentioned herein, N.Y.C. Admin. Code. § 8-802 granted Plaintiff the right of security against unreasonable search and seizure.

257. At all relevant times mentioned herein, N.Y.C. Admin. Code. § 8-802 granted Plaintiff the right of security against excessive force.

258. At all relevant times mentioned herein, N.Y.C. Admin. Code. § 8-802 granted Plaintiff the right of security against excessive force regardless of whether such force was used in connection with a search or seizure.

259. At all relevant times mentioned herein, the Individual Defendants and/or covered individuals employed by the CITY, violated Plaintiff's right of security against unreasonable search and seizure guaranteed by N.Y.C. Admin. Code. § 8-802.

260. At all relevant times mentioned herein, the Individual Defendants and/or covered individuals employed by the CITY, violated Plaintiff's right of security against excessive force guaranteed by N.Y.C. Admin. Code. § 8-802.

261. At all relevant times mentioned herein, the Individual Defendants and/or covered individuals employed by the CITY failed to intervene in the violation of Plaintiff's rights secured by N.Y.C. Admin. Code. § 8-802.

262. At all relevant times mentioned herein, Defendant CITY is liable for the acts and omissions of its police officers, who are covered individuals including the Individual Defendants pursuant to N.Y.C. Admin. Code. § 8-803(b).

263. Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts, as a direct and proximate result of the violations of Plaintiff's rights guaranteed by N.Y.C. Admin. Code. § 8-802.

264. Plaintiff has suffered, and continues to suffer, severe physical injuries, emotional distress, economic losses, and was unlawfully confined in violation of his rights guaranteed by N.Y.C. Admin. Code. § 8-802.

265. N.Y.C. Admin. Code. § 8-802 prohibits Defendants from raising as a defense to this cause of action, the defenses of qualified immunity or "any other substantially similar immunity."

266. The CITY has, by legislative pronouncement, and pursuant to the Mayor's refusal to veto N.Y.C. Admin. Code. § 8-801, et seq., knowingly waived its sovereign immunity with respect to the portions of the law which permit punitive damages and prohibit the use of immunity defenses as stated therein.

267. Pursuant to N.Y.C. Admin. Code. § 8-805, Plaintiff is entitled to compensatory damages, punitive damages, attorneys' fees and costs, injunctive relief, and other equitable relief as the Court deems appropriate.

**SIXTH CAUSE OF ACTION**

**Negligence, including Negligent Infliction of Emotional Distress, and  
Negligent Hiring, Retention, Training, and Supervision  
*Against All Defendants***

268. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

269. Defendant CITY owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

270. Defendant CITY breached those duties of care.

271. Defendant CITY placed Defendants in a position where they could inflict foreseeable harm.

272. Defendant City knew or reasonably should have known of the propensities of its employees, including the Individual Defendants, to commit civil rights violations and other unethical, corrupt, and violent acts.

273. Upon information and belief, said personnel files, records and disciplinary histories will demonstrate that the CITY was fully aware of the Individual Defendants' past constitutional violations, unsuitability for police work, misconduct, violence, criminality, and/or corrupt behavior, and as such, of the unacceptably high probability for the recurrence of similar transgressions, the

unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for public employment in general.

274. Upon information and belief, the CITY failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the CITY's tacit approval of such misconduct or the CITY's deliberate indifference towards the civil rights of those who may interact with its employees, including the Individual Defendants and their fellow officers.

275. Upon information and belief, Defendant CITY failed, or outright refused, to correct the prior unconstitutional, violent, corrupt, or dishonest behavior of the officers at issue, including the Individual Defendants, and thus, failed to prevent the exercise of such behavior against Plaintiff.

276. Defendant CITY failed to take reasonable measures in hiring, training, retaining and supervising its employees, including the Individual Defendants that would have prevented the aforesaid injuries to Plaintiff.

277. Defendants negligently breached their duties of care to Plaintiff and in doing so, inflicted emotional harm upon Plaintiff.

278. Plaintiff was physically injured and suffered understandable mental trauma as a result of being brutalized and violated by the Individual Defendants and the CITY.

279. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants and those officers who failed to intervene or who otherwise caused Plaintiff harm pursuant to the doctrine of *respondeat superior*.

280. At all times relevant herein, the Individual Defendants failed to intervene in the

obviously negligent, careless, reckless, and illegal actions of their fellow officers including those of the other Individual Defendants.

281. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

**SEVENTH CAUSE OF ACTION**  
**Pursuant to NYC Admin. Code § 14-189**  
***against All Defendants***

282. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

283. Effective August 14, 2020, NYC Administrative Code § 14-189 holds that any person may record police activities and maintain custody and control of any such recording and of any property or instruments used in such recording.

284. NYC Administrative Code § 14-189 created a private right of action for the unlawful interference with recording police activities.

285. Plaintiff attempted to and began recording police activities as defined in NYC Administrative Code § 14-189.

286. Defendants interfered with Plaintiff's right to record police activities.

287. Defendants attempted to intimidate Plaintiff to interfere with his right to record police activities.

288. Defendants threatened Plaintiff to interfere with his right to record police activities.

289. Defendants falsely arrested Plaintiff to interfere with his right to record police activities.

290. Defendants used excessive force against Plaintiff to interfere with his right to record police activities.

291. Defendants acted in concert to cover up this violation of Plaintiff's right to record

police activities.

292. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

**EIGHTH CAUSE OF ACTION**  
**Violation of the New York City Human Rights Law**  
***Against All Defendants***

293. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

294. The New York City Human Rights Law (NYCHRL) prohibits discrimination in places of "public accommodation" on the basis of, inter alia, gender, race, national origin, and actual and/or perceived immigration status.

295. The public street, and sidewalk where the incident took place each constitute a "place of public accommodation" under applicable law.

296. The public street, and sidewalk where the incident took place are owned and maintained by the City of New York.

297. The New York City Police Department and its various offices and locations constitute a "place of public accommodation" under applicable law.

298. By the actions and omissions described above, amongst others, the Defendants discriminated against Plaintiff on the basis of his race.

299. By the actions and omissions described above, amongst others, the Defendants permitted Plaintiff to be discriminated against on the basis of his race.

300. By the actions and omissions described above, amongst others, the Defendants created, condoned, ratified and/or acquiesced to a setting and/or environment which fostered, allowed and/or permitted discrimination, harassment, abuse and misconduct in numerous forms.

301. The Defendants negligently, recklessly and/or willfully failed to take appropriate action and/or affirmatively aided and abetted the other Defendants in their unlawful conduct towards Plaintiff.

302. As a result of Defendants' conduct, Plaintiff has suffered damages, including but not limited to, physical injuries, emotional distress, mental anguish, economic loss and/or special damages, for which Plaintiff is entitled to an award of all damages available under the law including punitive damages.

303. Defendant the City of New York is not immune from punitive damages pursuant to the NYCHRL.

304. Plaintiff was injured as a direct and proximate result of Defendants' violation of his rights, in an amount that exceeds the jurisdictional limits of all lower courts.

**NINTH CAUSE OF ACTION**  
**Pursuant to 42 U.S.C. § 1984, *Monell* claim**  
***against Defendant THE CITY OF NEW YORK***

305. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

306. Defendant CITY maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, and tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative conduct.

307. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

308. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant

City's employees.

309. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

310. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

311. Defendant City's conduct caused Plaintiff to be deprived of his civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

312. Plaintiff was damaged as a direct and proximate result of Defendants' violation of his rights, and in an amount that exceeds the jurisdictional limits of all lower courts.

313. The CITY OF NEW YORK is liable to Plaintiff given its recalcitrant patterns and practices as well as persistent failure to train its agents, servants, and employees with respect to: 1) *Debour* and/or analyzing the conduct required to stop, question, frisk, pursue, and detain and/or arrest citizens in street encounters; 2) the use of BWC; 3) the duty to report misconduct and constitutional violations and 4) the duty to intervene to prevent other law enforcement officers from violating the civil rights of arrestees and/or citizens.

314. Filed on January 31, 2008, *Floyd v. City of New York*, remains open for Court appointed monitorship of THE CITY OF NEW YORK's compliance with the settlement agreement obtained subsequent to the Court's finding that THE CITY OF NEW YORK engaged in unconstitutional and discriminatory patterns and practices in its use of Terry Stops also known

as “stop and frisk” or “stop, question, and frisk” [hereinafter as “SQF”].

315. The pleadings, transcripts, and decision in Floyd as well as the monitor reports are incorporated hereto by reference.

316. The 2020 NYPD Enforcement Report admitted that the majority of NYPD uniformed officers were white.

317. The actions of the Individual Defendants were part of THE CITY OF NEW YORK’s custom and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of THE CITY OF NEW YORK under the NYPD’s “Stop, Question and Frisk” policy or program [hereinafter as “SQF” or “Stop and Frisk”].

318. Under Stop and Frisk, THE CITY OF NEW YORK permitted, condoned and/or acted with deliberate indifference to the rights of its citizens and visitors, especially those who are Black males.

319. The remedial order in *Floyd v. City of New York*, mandated the involvement of a court-appointed monitor to establish policies and procedures for NYPD’s body-worn camera program.

320. There is no question that the implementation of BWCs across the NYPD has been useful in identifying officers who are responsible for unlawful acts and constitutional violations.

321. However, NYPD is also aware that officers are intentionally removing and/or obscuring their BWC footage before, during and after problematic encounters.

322. As reported by the Civilian Complaint Review Board (CCRB) in February of 2020, and observed by the undersigned in may force cases, including the instant case, Officers have also been seen and heard intentionally obscuring their BWCs or signaling to each other to remove or

turn off their cameras to avoid documenting misdeeds, crimes, and constitutional violations.

323. In February of 2020, the CCRB recommended that NYPD amend its BWC policies to make intentionally hindering a BWC recording a prohibited act.

324. To date, NYPD has refused to amend its policies to prohibit intentionally hindering a BWC recording.

325. The refusal to promulgate a policy which makes clear that intentionally obscuring one's camera is misconduct, has clearly empowered unscrupulous officers like the Individual Defendants to obscure their BWC while committing unlawful acts and while conspiring to coverup said unlawful acts.

326. There is no justifiable reason for THE CITY OF NEW YORK to continue a policy which allows this blatant unconstitutional misconduct to continue unabated, especially as the act of obscuring a BWC to prevent one's actions from being recorded, demonstrates a fundamental lack of integrity shared only by the worst officers.

327. Similarly, NYPD has failed to properly train its officers to prevent unlawful street-encounters,

328. The Patrol Guide 212-11 covers investigative encounters, but at 16 pages long, most officers have not read or understood the law which governs street encounters, or the policy enacted by NYPD which purports to obtain their compliance with the law.

329. Training on SQF and other critical legal and procedural concepts that officers frequently misunderstand and/or ignore has never ventured beyond pre-recorded rote, videos that recite the law without giving any relevant context.

330. These videos are usually shown at roll call, not formalized training, and quickly ignored after they are viewed.

331. For all of the millions of dollars that THE CITY OF NEW YORK spends on tactical and weapons trainings, and policies related thereto, it spends very little time and money ensuring that its employees are properly trained in realistic scenarios geared toward conducting the basic street-level encounters that make up the majority of citizen interaction and majority of constitutional violations by the NYPD, as here.

332. While the individual Defendants bear responsibility for their own acts and omissions, THE CITY OF NEW YORK is also responsible for its egregious and longstanding failures that led to the violation of Plaintiff's constitutional rights and irreparably harmed Plaintiff.

333. THE CITY OF NEW YORK has failed to train its officers on their duty to intervene in unconstitutional conduct by other officers, including the use of excessive force and false arrests and to report same.

334. THE CITY OF NEW YORK has failed to train its supervisors and investigators to ensure that officers who commit misconduct are supervised, retrained, demoted and/or terminated.

335. Instead, THE CITY, if it punishes officers at all, merely demands that they forfeit some of their numerous vacation days even where they have engaged in egregious uses of excessive force and misconduct.

336. The CITY rarely, if ever, punishes or even investigates the failure of officers to intervene in excessive force or other misconduct that they witness, despite having a stated policy that holds that to fail to intervene and/or fail to report misconduct, is itself misconduct.

337. THE CITY OF NEW YORK knows to a moral certainty that the ongoing failure to train its officers will lead to officers making unconstitutional choices that sometimes have horrific and deadly consequences.

338. Plaintiff was damaged as a direct and proximate cause by THE CITY OF NEW

YORK's ongoing failure to train its officers, and failure to promulgate policies that encourage the lawful policing of New York City and discourage unlawful, dishonest, and criminal behavior among NYPD officers as articulated throughout the complaint.

339. Plaintiff was injured as a direct and proximate result of Defendants' violation of his rights, in an amount that exceeds the jurisdictional limits of all lower courts.

**PRAYER FOR RELIEF**

**WHEREFORE**, Plaintiff respectfully requests that the following be entered jointly and severally against Defendants and for a jury trial on all causes of action:

- a. A declaratory judgment that the actions, conduct and practices of Defendants complained of herein violated Plaintiff's rights, privileges, and immunities secured by the Fourth and Fourteenth Amendments to the United States Constitution and applicable federal law; and
- b. A declaratory judgment that the actions, conduct and practices of Defendants complained of herein violated Plaintiff's rights, privileges, and immunities secured by the laws of the State and City of New York; and
- c. An award of compensatory damages in an amount to be determined at trial for the serious physical injuries, mental and emotional anguish, unlawful search and seizure, human rights violations, and economic damages sustained by Plaintiff as a result of the events alleged herein; and
- d. An award of punitive damages and any applicable penalties in an amount to be determined at trial; and

- e. An award of Plaintiff's reasonable attorneys' fees pursuant to fees pursuant to 42 U.S.C. § 1988 and New York Statute, together with the costs of this action; and
- f. An award of repayment of Plaintiff's expert fees and costs as permitted by NYC Admin. Code. 14-189.
- g. Prejudgment interest on all amounts due; and
- h. Such other further relief as the Court may deem appropriate.

DATED: New York, New York  
August 1, 2024

Respectfully,

LIAKAS LAW, P.C.  
*Attorneys for the Plaintiff*  
RICHARD HAIRSTON  
40 Wall Street, 50<sup>th</sup> Floor  
New York, New York 10005  
Tel: (212) 937-6655



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CASSANDRA ROHME, ESQ.

**VERIFICATION**

CASSANDRA ROHME, an attorney duly admitted to practice in the Courts of the State of New York, says that she is an associate in the office of Liakas Law, P.C., attorneys for Plaintiff RICHARD HAIRSTON, and affirms the following statements to be the truth under penalties of perjury, pursuant to CPLR § 2106:

That she has read the foregoing Summons and Complaint and knows the contents thereof; that the same is true to her knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes them to be true based on conversations with the Plaintiff and investigations conducted by the office of the undersigned.

Deponent further states that the reason why this verification is not made by Plaintiff RICHARD HAIRSTON is that Plaintiff is not presently in the County where the undersigned maintains her office.

DATED: New York, New York  
August 1, 2024

Respectfully,

LIAKAS LAW, P.C.  
*Attorneys for the Plaintiff*  
RICHARD HAIRSTON  
40 Wall Street, 50<sup>th</sup> Floor  
New York, New York 10005  
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CASSANDRA ROHME, ESQ.